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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

25STCV36271

RAY

H. KANG vs JAE HO SON, et al.

June

23, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANTS' COMBINED DEMURRER TO FIRST AMENDED COMPLAINT. DEFENDANTS' COMBINED

MOTION TO STRIKE PORTIONS OF FIRST AMENDED COMPLAINT.

RULING:

The Court overrules the

Demurrer and denies the Motion.

Twenty days to answer.

I.

BACKGROUND

On December 11, 2025, RAY

H. KANG (Plaintiff) filed a Complaint against JAE HO SON; MARC CHOI; OLIVIA HA;

HYO SOOK JEONG; SHOOGAR, LLC; and STAGGER COFFEE, LLC (Defendants).

On March 6, 2026, Plaintiff

filed the First Amended Complaint (FAC), listing Causes of Action for:

(1)

FRAUD AND INTENTIONAL MISREPRESENTATION

(2)

BREACH OF FIDUCIARY DUTY

(3)

CONVERSION

(4)

BREACH OF CONTRACT

(5)

CONSTRUCTIVE TRUST

(6)

MONEY HAD AND RECEIVED / RESTITUTION

(7)

ACCOUNTING

(8)

DECLARATORY RELIEF

(9)

VIOLATION OF PENAL CODE SECTION 496.

Plaintiff alleges that,

between 2021 and 2025, Plaintiff invested about \$300,000.00 in capital

contributions across three related ventures, for an agreed thirty percent ownership

interest, but Defendants omitted Plaintiff's interest in

business filings, denied access to financial records, excluded Plaintiff from

profit distributions, and misappropriated contributions and company assets for Defendants'

personal use.

On April 29, 2026, Defendants

filed the Demurrer to each Cause of Action of the FAC, except the Seventh, and the Motion to Strike punitive damages allegations, based on various grounds, including that Defendants acted solely in their capacity as members and not as managers or agents capable of binding the Limited Liability Corporations (LLCs), citing Corporations Code section 17703.01.

Plaintiff opposes, arguing

that the FAC contains all required allegations. Alternatively, Plaintiff requests leave to amend to add more details.

II.

LEGAL STANDARD

Demurrers are to be

sustained where a pleading fails to plead adequately any essential element of the cause of action. (*Cantu v. Resolution*

Trust Corp. (1992) 4 Cal.App.4th 857, 879-880.) A complaint does not

necessarily need to be a model of pleading but needs sufficient factual

allegations. (E.g., *State v. The Superior Court* (2001) 87 Cal.App.4th

1409, 1411.) “Even as against a special demurrer, a plaintiff is required

only to “set forth in his complaint the essential facts of his case with

reasonable precision and with particularity sufficiently specific to acquaint

the defendant of the nature, source, and extent of his cause of action.” ’ ’ ” (Elder v. Pac. Bell Tel. Co. (2012) 205

Cal.App.4th 841, 858.)

The grounds for a motion

to strike are that the pleading has irrelevant, false or improper matter, or

has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.)

The grounds for moving to strike must appear on the face of the pleading or by

way of judicial notice. (Ibid., § 437.)

III.

ANALYSIS

A. Judicial

Notice

The Court denies

Defendants’ Request for Judicial Notice of the blank “Secretary of State

Articles of Organization Limited Liability Company (LLC).” Materials prepared

by private parties with the Secretary of State are not official records

suitable for judicial notice. (People v.

Thacker (1985) 175 Cal.App.3d 594, 598-599; Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 608.) Judicial

notice requests may be denied based upon a lack of relevance. (Kashian v. Harriman (2002) 98

Cal.App.4th 892, 901, fn.3; Ragland v.

U.S. Bank National Assn. (2012) 209 Cal.App.4th 182, 194; Barratt Amer., Inc. v. City of San Diego

(2004) 117 Cal.App.4th 809, 812, fn. 2 [court denied judicial notice of city

resolutions as being irrelevant to question involved in demurrer].)

Alleging omitted

ownership or membership information on LLC formation documents, is not any

essential element of the Causes of Action, as analyzed below.

B. Vicarious

Liability

Defendants assert that

the members were acting only as managers for LLCs and lacked authority to bind

them, and the alter ego factors are insufficiently pled.

Plaintiff reasons that alter

ego is adequately pled under the liberal standard, tort liability is alleged

independently of LLC factors, and LLC manager status binds LLCs (citing *Siry*

Investment, L.P. v. Farkhondehpour (2022) 13 Cal.5th 333, 361; and *Corp.*

Code § 17703.01).

“Like corporations, an

LLC is recognized as a legal entity separate and apart from its ‘members’ or

owners. [Corps.C. §§ 17701.04(a), 17701.05].” (Cal. Prac. Guide Enf. J. &

Debt, § 3:68.6 [available on Westlaw].) However, “[w]here the LLC is managed by

all of its members, each member is deemed an agent of the LLC in dealings with

third persons and can bind the LLC in the same way a general partner can bind

the partnership... [Corps.C. § 17703.01(a)]." (Ibid., § 3:68.11.) "A

corporation may be held vicariously liable as a principal for the torts of its

agents." (Secci v. United Independent Taxi Drivers, Inc. (2017) 8

Cal.App.5th 846, 855.) " 'The principal must in some manner indicate that the

agent is to act for him, and the agent must act or agree to act on his behalf

and subject to his control.' " (Ibid.)

Additionally, under the

alter ego doctrine in relation to reverse piercing, the corporate form may be

disregarded in order to hold the corporation liable for claims made against an

individual. (See, e.g., Reliant Life Shares, LLC v. Cooper (2023) 90

Cal.App.5th 14, 38 [reverse piercing applied to LLCs, and where the entities

are closely held and controlled by the individual who was not innocent but

engaged in the wrongdoing]; Greenspan v.

LADT, LLC (2010) 191 Cal.App.4th 486, 513-514 [rule against reverse piercing

inapposite where the corporate veil would not be pierced for satisfying a debt

of an individual shareholder]; Postal Instant Press, Inc. v. Kaswa Corp.

(2008) 162 Cal.App.4th 1510, 1512-1513 [rejecting other jurisdictions'

authorities recognizing "reverse piercing of the corporate veil"]; Taylor v.

Newton (1953) 117 Cal.App.2d 752, 761 [holding corporation to be the alter

ego of an individual].).

“ ‘Application of the

alter ego doctrine does not depend upon pleading or proof of fraud.’ ” (Misik v. D’Arco (2011) 197 Cal.App.4th

1065, 1074.) “A claim based upon an alter ego theory is not itself a claim for

substantive relief.” (Leek v. Cooper

(2011) 194 Cal.App.4th 399, 418.) “To recover on an alter ego theory, a

plaintiff need not use the words ‘alter ego,’ but must allege sufficient facts

to show a unity of interest and ownership, and an unjust result if the

corporation is treated as the sole actor.” (Leek

v. Cooper (2011) 194 Cal.App.4th 399, 415 [noting a complete absence of such

allegations]. Cf. Rutherford Holdings,

LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 235 [sufficiently alleged

defendant dominated and controlled, a unity of interest and ownership existed,

a mere shell and conduit, inadequately capitalized, failed to abide by

formalities of corporate existence, used assets as own, and recognizing

separate existence would promote injustice].) As to contract-based claims, the

alter ego doctrine is sufficiently alleged by an allegation that defendant made

the contract involved. (Los Angeles

Cemetery Assoc. v. Superior Court (1968) 268 Cal.App.2d 492, 494.)

“[C]ourts have followed a liberal policy of applying the alter ego doctrine

where the equities and justice of the situation appear to call for it rather

than restricting it to the technical niceties depending upon pleading and

procedure.” (First Western Bank &

Trust Co. v. Bookasta (1968) 267 Cal.App.2d 910, 915.) “The alter ego issue

is ordinarily raised by the pleadings.... Nonetheless, even when not pleaded,

that issue may be resolved at trial....” (Hennessey’s

Tavern v. Am. Air Filter Co. (1988) 204 Cal.App.3d 1351, 1358.)

Here, the FAC does not reveal

that all individual defendants acted only as innocent managers, but instead

alleges wrongdoing and involvement in joint ventures and partnerships. (E.g.,

FAC, ¶¶ 37 (“Defendant Ha is currently a member of Stagger Coffee, LLC and

exercises control over company operations and assets jointly with Defendants

Son and Choi.”), 105 (“induced Plaintiff to confer these benefits by

misrepresenting that Plaintiff would receive documented ownership....”), and 110

(“Defendants Jae Ho Son and Marc Choi by

virtue of their joint venture and partnership relationship.”).)

The Demurrer is overruled

as to allegations related to vicarious liability.

C. Fraud

and Intentional Misrepresentation

Defendants contend the

FAC fails to allege specifically (1) a failure to deliver thirty percent

ownership interest, (2) more than a prediction of future events, (3) actual

reliance on representations as to Shoogar and Stagger, and (4) the elements of

conspiracy as to Defendant HA.

Plaintiff counterargues

that more than future predictions are alleged, and the FAC identifies each

misrepresentation by speaker, date, time, and platform, including messages in

which Defendants listed Plaintiff as a (30%) owner as late as October 2024 (referencing

FAC, ¶¶ 31, 38).

As to the degree of

particularity required to allege fraud, “considerations of practicality enter

in.” (Miles v. Deutsche Bank Nat’l Trust

Co. (2015) 236 Cal.App.4th 394, 403.) “[T]he courts should not ... seek to

absolve the defendant from liability on highly technical requirements of form

in pleading. Pleading facts in ordinary and concise language is as permissible

in fraud cases as in any others, and liberal construction of the pleading is as

much a duty of the court in these as in other cases.” (Appollo Capital Fund, LLC v. Roth Capital Partners, LLC (2007) 158

Cal.App.4th 226, 242.) Less specificity as to fraud claims is required if it

appears from the nature of allegations that defendant must necessarily possess

full information, or if the facts lie more in the knowledge of opposing

parties. (Alfaro v. Community Housing

Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356,

1384-1385 ["it does not appear necessary to require each of the 38 plaintiffs

to allege each occasion on which an agent of either defendant could have

disclosed Surely defendants have records of their dealings with the

plaintiffs."]. Accord, Bushell v. JPMorgan Chase Bank, N.A.

(2013) 220 Cal.App.4th 915, 931 ["plaintiffs did not have to specify the ...

personnel who prepared these documents because that information is uniquely

within ... [defendant's] knowledge."].)

"Reliance exists when the

misrepresentation or nondisclosure was an immediate cause of the plaintiff's

conduct which altered his or her legal relations, and when without such

misrepresentation or nondisclosure he or she would not, in all reasonable probability,

have entered into the contract or other transaction." (Alliance Mortgage Co. v. Rothwell (1995) 10 Cal.4th 1226, 1239.)

Even for specifically

pled fraud claims, only the damage type need be alleged, and "the absence of a

specific amount from the complaint is not necessarily fatal as long as the

pleaded facts entitle the plaintiff to relief." (Furia v. Helm (2003)

111 Cal.App.4th 945- 957.) A party alleging fraud may request rescission of a

fraudulently induced contract and either rescind it and restore the

consideration or affirm it and recover fraud damages. (*Geraghty v. Shalizi*

(2017) 8 Cal.App.5th 593, 597.) “[O]ne false representation of a material fact

is sufficient either for an action for rescission of contract or to sustain an

action for damages for fraud, provided the representation be such that the

court can say that without it the contract would not have been entered into,...

(*Feckenscher v. Gamble* (1938) 12 Cal.2d 482, 492.)

Misrepresentations about

the future are actionable when made by a party held out as having superior

knowledge upon which plaintiff reasonably relied. (*Neu-Visions Sports v. Soren* (2000) 86 Cal.App.4th 303, 308. See

also *Miles v. Deutsche Bank Nat'l Trust*

Co. (2015) 236 Cal.App.4th 394, 402-403 [misrepresentation of a future event may form the basis of

promissory fraud claim]; *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 158 [“Certain

broken promises of future conduct may, however, be actionable. Civil Code

section 1710, subdivision (4) defines one type of deceit as ‘A promise, made

without any intention of performing it.”]; *Magpali v. Farmers Group*

(1996) 48 Cal.App.4th 471, 481 [“A promise of future conduct is actionable as

fraud if made without a present intent to perform.”].)

And general allegations

are permitted as to the pleading of conspiracy. (*Quelimane Co., Inc. v. Stewart Title Guar. Co.* (1998) 19 Cal.4th

26, 47.)

Here, Plaintiff alleges

with sufficient particularity the various dates of promises and representations

made without intent to perform, which Plaintiff was fraudulently induced to

rely upon, by performing the oral agreement, investing funds, providing

services and foregoing opportunities and legal action, and Defendants' denial

of Plaintiff's ownership interest (E.g., FAC, ¶¶ 57-69, 71.)

Further, the FAC alleges

ultimate facts and reasonable inferences supporting elements of conspiracy,

including Defendants' agreement and actions done in furtherance of denying

Plaintiff's ownership interest, while accepting his capital contributions.

(E.g., FAC, ¶¶ 67-71.)

The Demurrer is overruled

as to Fraud.

D. Breach

of Fiduciary Duty

Defendants maintain that

Defendants do not owe fiduciary duties as LLC managers.

Plaintiff responds that joint

venture and partnership members, and LLC managers, owe fiduciary duties (citing

Corp. Code § 17704.09, subd. (f)(1); *Leff v. Gunter* (1983) 33 Cal.3d 508.)

“[W]hereas managers of

limited liability companies may not be held liable for the wrongful conduct of

the companies merely because of the managers' status, they may nonetheless be

held accountable under Corporations Code section 17158, subdivision (a) for

their personal participation in tortious or criminal conduct, even when

performing their duties as manager.” (*People v. Pac. Landmark, LLC*

(2005) 129 Cal.App.4th 1203, 1213.) “LLC members may be liable to third parties

for participating in tortious conduct. [Corps.C. § 17703.04(c)].” (Cal. Prac.

Guide Enf. J. & Debt, § 3:68.10a.) While generally LLC members have limited

liability to the same extent enjoyed by corporate shareholders, members who

participate in management and control of the company and are subject to tort liability,

based upon alter ego liability. (*Angel Lynn Realty, Inc. v. George*

(2025) 114 Cal.App.5th 655, 663, fn. 7.)

Also, a claim for breach

of fiduciary duty is “a species of tort.” (*Ash v. N. Am. Title Co.*

(2014) 223 Cal.App.4th 1258, 1276.) Allegations of the ultimate fact of

agency sufficiently allege a fiduciary

relationship without any need for “explaining how this fact of agency

originated....” (*Skopp v. Weaver* (1976)

16 Cal.3d 432, 439. See also *Zumbrun v.*

Univ. of So. Cal. (1972) 25 Cal.App.3d 1, 13 [facts giving rise to a

confidential, fiduciary or trustee relationship must be pled, and a “bare

allegation that defendants assumed a fiduciary relationship” is a conclusion]; *City of Hope Nat'l Med. Ctr. v. Genentech*

(2008) 43 Cal.4th 375, 386 [“ ‘[B]efore a person can be charged with a

fiduciary obligation, he must either knowingly undertake to act on behalf and

for the benefit of another, or must enter into a relationship which imposes

that undertaking as a matter of law.’ ”].)

Further, an LLC does not

necessarily act in isolation, but can involve interacting with partnerships,

joint ventures or individuals. (See, e.g., *Perry v. Stuart* (2025) 111

Cal.App.5th 472, 481 [“California limited partnership ... petitioned for a writ

of mandate to compel ... LLC and its former and current managers,...”].)

Here, the FAC adequately

alleges that individual defendants breached fiduciary duties in relation to

LLCs, joint ventures, and partnerships. (E.g., FAC, ¶¶ 73-81.) Further, alter

ego liability is adequately alleged, given flexible law cited above, and based

upon various ultimate facts inferring a unity of interest and ownership, and an

unjust result if treating entities as the sole actor. (E.g., *ibid.*, ¶¶ 46

(“Defendants have diverted, concealed, and misappropriated business assets for their personal benefit

while denying Plaintiff his rightful ownership interest and share of profits.”),

100 (“Defendants’ unjust retention of property acquired through fraud, concealment, and breach of fiduciary duty.”).)

The Court overrules the

Demurrer in regard to Fiduciary Duty.

E. Conversion

Defendants contend that

Plaintiff cannot allege conversion by members not to be listed on formation

documents or other public filings for LLCs, and allegations admit that Plaintiff

is not a member of Shoogar or Stagger.

Plaintiff responds that Conversion

is alleged based upon Plaintiff’s interest never delivered despite over

\$300,000 accepted consideration (referencing, FAC ¶¶ 85–87).

Money of an identifiable

sum can be the subject of a cause of action for conversion. (PCO, Inc. v.

Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP (2007)

150 Cal.App.4th 384, 395, 397.) Conversion includes the unauthorized taking of

intangible interests when merged with or reflected in something tangible. (Thrifty-Tel, Inc. v. Bezenek (1996) 46

Cal.App.4th 1559, 1565.) “A general allegation that the defendant ‘converted

the property to his own use’ suffices to allege conversion....” (Franklin v.

Municipal Court (1972) 26 Cal.App.3d 884, 902.) Complainants need only allege entitlement to immediate possession and need not necessarily allege ownership. (Plummer v. Day/Eisenberg, LLP (2010) 184 Cal.App.4th 38, 45.)

Plaintiff satisfactorily

alleges Defendants' taking contributions over \$300,000.00 in capital, in connection with percentage interests in the LLCs. (E.g., FAC, ¶¶ 26-27.) And there is no claim element that requires addressing omitted ownership or membership information on LLC formation documents.

The Court overrules the

Demurrer as to Conversion.

F. Breach

of Contract

Defendants contend that

the thirty percent membership interest was never taken away, and Defendants cannot be liable for performing LLC management duties.

As analyzed above, the

FAC adequately alleges deprivation of a 30 percent ownership interest in exchange for capital contributions and services, and Defendants' liabilities are alleged.

The Demurrer to the Breach

of Contract Cause of Action is overruled.

G. Constructive

Trust

Defendants assert that Defendants

have not wrongfully acquired or retained Plaintiff's ownership interest, and Defendant

HYO SOOK JEONG is not a member of Shoogar or Stagger.

Regarding the Common

Count Causes of Action, Plaintiff reasons that each is independently supported

by Defendants' wrongful retention of Plaintiff's capital contributions and

denial of the ownership interest (referencing FAC ¶¶ 101, 103–105).

As addressed above, the

FAC well alleges deprivation of Plaintiff's contributions and membership

interest. Additionally, the FAC satisfactorily alleges conspiracy-based

liability against Co-Defendant HYO SOOK JEONG, and that all "Defendants" did some

alleged wrongdoing. (E.g., FAC, ¶¶ 78, 84-89.)

The Demurrer is overruled

as to Constructive Trust.

H. Money

Had and Received / Restitution

Defendants contend that

this Claim fails with the other Causes of Action it is based upon.

“[A] common count, by

long continued practice is not subject to attack by general demurrer or by a

special demurrer for uncertainty.” (Auckland

v. Conlin (1928) 203 Cal. 776, 778. Accord, Smith v. Bentson (1932) 127 Cal.App.Supp. 789, 791.) “When a

common count is used as an alternative way of seeking the same recovery

demand in a specific cause of action, and is based on the same facts, the

common count is demurrable if the cause of action is demurrable.” (Berryman v. Merit Property Management, Inc.

(2007) 152 Cal.App.4th 1544, 1560.)

The Court has determined

that the other Causes of Action are not demurrable.

Hence, this Common Count--

Money Had and Received-- is not subject to attack by demurring.

I.

Declaratory Relief

Defendant reasons that

this Claim is derivative of the other Causes of Action and therefore fails.

Plaintiff argues that

Declaratory Relief is independently alleged based upon an ownership dispute

over an operating business (referring to FAC ¶¶ 115–117).

A

demurrer is properly sustained as to claims for Declaratory Relief “wholly

derivative” of an unsupportive claim. (Ball

v. FleetBoston Financial Corp. (2008) 164 Cal.App.4th

794, 800.)

As addressed above, the

other Claims are supported by the allegations.

The Demurrer is overruled

as to Declaratory Relief.

J. Violation

of Penal Code Section 496

Defendant criticizes the section

496 Claim for failing to address how Defendant OLIVIA HA could have known that

her 20% interest wrongfully came from Plaintiff’s membership interest and

instead admitting Plaintiff did not know that (referencing FAC, ¶ 31).

Plaintiff disagrees,

stating that Defendant’s messages confirming Plaintiff’s 30 percent ownership interests

and contribution, alleges her knowledge (referring to FAC ¶¶ 31–32, 38).

The

elements of the Cause of Action are these:

Property

was stolen or obtained in a manner constituting theft;

defendant

knew the property was so stolen or obtained;

defendant

received or had possession of the stolen property.

(Switzer v. Wood

(2013) 35 Cal.App.5th 116, 126, 129. See

also Siry Investment, L.P. v.

Farkhondehpour (2022) 13 Cal.5th 333, 351 (“Penal Code section 484,

subdivision (a) describes the acts constituting theft to include theft by false

pretense, which is the consensual but fraudulent acquisition of property from

its owner.... [The defendant] was found liable for fraud, i.e., for the

fraudulent acquisition of property (money) from its owner....”]; Bell v. Feibush (2013) 212 Cal.App.4th

1041, 1049 [upholding civil liability under Penal Code section 496].)

In the FAC, Paragraph 39

directly alleges: “Defendants granted Ms. Ha’s 20% interest by diluting Plaintiff’s

rightful 30% stake,...” And paragraph 31 merely alleges what Defendant was “representing

to Plaintiff....” Paragraphs 122 through 125 well allege ultimate facts about

bases of Defendant’s knowledge, and alternatively liability based upon

conspiracy with others.

The Court overrules the

Demurrer regarding Penal Code section 496.

K. Punitive

Damages

Defendants contend that

Plaintiff failed to allege facts in support of punitive damages, since the allegations

merely describe business disputes and disagreements.

Plaintiff describes the

Motion as relying upon an incomplete description of the FAC that in full

context alleges that Defendants fraudulently induced Plaintiff to invest over

\$300,000.00 by promising a 30 percent ownership interest.

"In order to survive a

motion to strike an allegation of punitive damages, the ultimate facts showing

an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67

Cal.App.4th 1253, 1255. Accord, Spinks v. Equity Residential Briarwood Apartments

(2009) 171 Cal.App.4th 1004, 1055; Blegen

v. Superior Court (1981) 125 Cal.App.3d 959, 962.)

Further, punitive damages

may be awarded on the theory of promissory fraud. (Glendale Fed. Sav. & Loan Assn. v. Marina View Heights Dev. Co.

(1977) 66 Cal.App.3d 101, 133.) “Although punitive damages may not ordinarily be given for breach of contract, whether the breach be intentional, willful or in bad faith..., such damages may be awarded where a defendant fraudulently induces the plaintiff to enter into a contract.” (Las Palmas Assocs. v. Las Palmas Ctr. Assocs. (1991) 235 Cal.App.3d 1220, 1239.)

Additionally, punitive

damages may be awarded in an action for conversion “ ‘given the required showing of malice, fraud or oppression. [Citations.]’ ” (Haines v. Parra (1987) 193 Cal .App.3d 1553, 1552.)

Also, “[i]n cases

sanctioning punitive damages where there has been a breach of fiduciary responsibility, there has also been oppression, malice or fraud.” (Delos v. Farmers Group, Inc. (1979) 93

Cal.App.3d 642, 657. Accord, Scott v.

Phoenix Schools, Inc. (2009) 175 Cal.App.4th 702, 715; Flyer's Body Shop Profit Sharing Plan v. Ticor Title Ins. Co. (1986) 185 Cal.App.3d 1149, 1154.)

As analyzed with regard

to the Demurrer, fraud, conversion, and fiduciary duty breach, are adequately alleged, which support the alleged remedy of punitive damages.

The Motion is Denied.

IV.

CONCLUSION

Accordingly, the Court overrules

the Demurrer, and denies the Motion to Strike, for reasons stated.